

Amendment No. 2 to SB6002

Watson

Signature of Sponsor

AMEND Senate Bill No. 6002*

House Bill No. 6001

by adding the following new subsection () to the amendatory language of Section 1:

() The department may maintain any information or records collected or received by the division or chief immigration enforcement officer confidentially, including, but not limited to, sensitive or confidential information collected or received from a federal, local, or state department or agency.

AND FURTHER AMEND by deleting Section 5 and substituting:

SECTION 5. Tennessee Code Annotated, Title 7, Chapter 68, is amended by adding the following new section:

(a) Subject to specific appropriation of funds by the general assembly, effective no later than July 1, 2025, there is created an immigration enforcement grant program to incentivize local governments and law enforcement agencies to enter into agreements between the respective local government or law enforcement agency and the United States attorney general under the 287(g) program pursuant to the Immigration and Nationality Act (8 U.S.C. § 1357(g)) concerning the enforcement of federal immigration laws, detentions and removals, and investigations in this state. Funds received for the

grant program must be deposited into a special account in the state treasury to be known as the immigration enforcement fund, hereinafter known as the "fund."

(b) The grant program and grants approved under the program are to be administered by the chief immigration enforcement officer (CIEO) appointed pursuant to SECTION 1 and distributed from the fund.

(c) To qualify for and receive a grant from the fund, a local government or law enforcement agency must have a valid, executed agreement between the local government or law enforcement agency and the United States attorney general under the 287(g) program pursuant to the Immigration and Nationality Act (8 U.S.C. § 1357(g)) and must:

(1) Submit an application to the centralized immigration enforcement division created pursuant to SECTION 1, including a copy of such agreement; and

(2) Execute a contract with the division on terms specified by the division, including the right of the division to claw back any remaining grant funding in accordance with subsection (h).

(d) The CIEO:

(1) Shall develop the grant application and determine any additional information to be included with the application's submission, including the proposed use of the grant funds consistent with this section;

(2) Shall not issue more than one (1) grant under the grant program to a local government or law enforcement agency; and

(3) Shall establish grant eligibility criteria that prioritize local governments and law enforcement agencies that demonstrate a strong commitment to enforcing federal immigration laws.

(e) Grants under the grant program may be issued for the following purposes:

(1) To fund training, operational expenses, and other resource needs for local governments and law enforcement agencies participating in immigration enforcement efforts;

(2) To fund investments into or purchases of law enforcement equipment to be used in the enforcement of immigration laws; and

(3) To fund other immigration enforcement activities and programs as deemed appropriate by policies prescribed by the CIEO.

(f) A local government or law enforcement agency that receives a grant under the grant program shall submit quarterly reports to the centralized immigration enforcement division no later than thirty (30) days after the end of the quarter in which the local government or law enforcement agency receives the grant, and for each quarter thereafter until all grant funding has been expended by the local government or law enforcement agency. Each report must specify:

(1) The manner in which grant funds were expended, including an itemization of expenditures;

(2) The remaining balance of grant funds, if any, and the proposed use of such funds;

(3) The documented or projected impact of the grant funds in enforcing federal and state immigration laws;

(4) Statistics relative to an increase or decrease in crime from illegal aliens within the jurisdiction of the local government, if any; and

(5) Whether the amount of the grant was sufficient to meet the stated goals of the local government or law enforcement agency upon applying for the grant.

(g) The CIEO may require a local government or law enforcement agency that has been issued a grant under the grant program to provide an accounting of the grant funds at any time after issuance of the grant.

(h) Subsequent to a quarterly report filed under subsection (f) or an accounting required under subsection (g), upon a finding by the division or the CIEO that grant funds have been misused or misappropriated by a local government or law enforcement agency, that the local government or law enforcement agency has failed to demonstrate meaningful steps toward supporting federal immigration laws or the immigration policies of this state, or that the local government or law enforcement agency has otherwise failed to fulfill any commitment made as a condition of receiving the grant, including the expiration, cancellation, or invalidation of the agreement between the local government or law enforcement agency required for grant funding under SECTION 5(c), the CIEO shall require the local government or law enforcement agency to remit all remaining grant funds back to the department of safety for deposit into the grant program fund.

(i)

(1) In addition to appropriations made to the fund, the department of safety may accept other funds by way of grant to the fund. Any such grant must be deposited into the fund to be distributed in accordance with this section.

(2) Moneys in the fund may be invested by the state treasurer in accordance with § 9-4-602.

(3) Interest accruing on investments and deposits of the fund must be credited to the fund, shall not revert to the general fund, and must be carried forward into the subsequent fiscal year.

(4) Any balance remaining unexpended at the end of a fiscal year in the fund does not revert to the general fund but must be carried forward into the subsequent fiscal year.

(j) The department of safety may maintain any information or records collected pursuant to the grant program confidentially, including, but not limited to, sensitive or confidential law enforcement information.